

UNIVERSITY CREDIT UNION v BERRY

25CF15100

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION/ PLAINTIFF'S MOTION TO STRIKE CROSS-COMPLAINT

This case involves the alleged breach of a solar loan entered into between University Credit Union ("Plaintiff") and Yvonne L. Berry, individually and as a Trustee of the Yvonne L. Berry Trust ("Defendants.")

Now before the Court is a motion to strike that Defendants' Cross-Complaint and Plaintiff's motion for summary judgment. Both motions are unopposed.

As an initial matter, the motion to strike does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the

court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language In the notice may be a basis for the Court to deny the motion.

The Court points out this procedural deficiency but in the interest of judicial efficiency will rule on the merits of the motion.

I. Background

On August 17, 2021, Defendants entered into a written loan agreement with Plaintiff for the sum of \$35,861.54 at 2.733 % per annum interest. (UMF 1.) Plaintiff performed under the contract. (UMF 2.) The last payment Defendants made was on December 3, 2024. (UMF 5.) There remains a balance of \$34,469.90 on the loan. (UMF 4.)

Defendant has denied the allegations and has asserted the defense that the signature on the Agreement is not hers and was fraudulently obtained. (Answer ¶ 9.)

II. Legal Standard and Discussion

A. Motion to Strike

A motion to strike lies either to strike: (1) any “irrelevant, false or improper matter inserted in any pleading”; or (2) any pleading or part thereof “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

Plaintiff moves to strike the Cross-Complaint on the grounds that because it was filed well after the Answer, Defendants were required to seek Court approval before filing any cross-complaint in this matter. (Code Civ. Proc. §426.30(a).)

Defendants did not seek prior approval before filing the Cross-Complaint. Accordingly, **the motion to strike is GRANTED, without prejudice for Defendant to seek leave to file a new Cross-Complaint.**

B. Summary Judgment

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) A plaintiff moving for summary judgment is not required to disprove any defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) If the plaintiff meets its burden, then the burden shifts to the defendant to show the existence of a triable issue of material fact. (*Ibid.*) The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Id.* at 850.)

Plaintiff seeks summary judgment on its breach of contract claim. The elements of a cause of action for breach of contract are: (1) existence of a contract; (2) plaintiff's performance of its obligations under the contract or excuse for nonperformance; (3) defendant's breach of the contract; and (4) resulting damages proximately caused by defendant's breach. (*Reichert v. Gen. Ins. Co.* (1968) 68 Cal.2d 822, 830.)

Plaintiff has demonstrated sufficient evidence in support of its cause of action, and the burden is now upon Defendants to show the existence of a triable issue of material fact. Although Defendants have not filed an opposition to the motion for summary judgment, both the purported Cross-Complaint and the Answer indicate that Defendants are trying to raise various affirmative defenses to the Complaint. The Court is cognizant of the Defendants' pro se status and the "strong public policy favoring disposition on the merits." (*Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395.)

Accordingly, the Court will continue the matter to July 10, 2026. Defendants have until 3:00pm on June 12, 2026, to file any opposition (including a proper response to the separate statement of facts pursuant to Cal. Rule of Court 3.1350). Plaintiff has until 3:00pm on June 26, 2026, to file a reply.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling on the Motion to Strike.

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25CV47849

PLAINTIFFS COUNSEL'S MOTIONS TO BE RELIEVED

Gregory P. Wayland, Esq and Corsaut & Wayland, LLP seek to be relieved as counsel of record for Plaintiffs Jerry D. Brock and Dorris G. Brock ("Plaintiffs").

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (Civil Form MC-0510); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (Civil form (MC052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Civil form (MC-053)). The Court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules Court, rule 3.1362(e).)

Attorney Gregory P. Wayland ("Wayland") advises that his clients, Plaintiffs are in breach their agreement for legal services and that the relationship between counsel and clients means that he is unable to provide effective counsel. Wayland has informed Plaintiffs of his intention to withdraw as counsel via email and has served the instant motion at Plaintiffs' address with return receipt requested. Wayland has confirmed the Plaintiffs' address using title records and has also attempted to phone the Plaintiffs but he has been unable to reach them or to leave a voicemail.

Counsel's Declarations comply with the statutory requirements. Therefore, the Motions to be Relieved are **GRANTED**. However, Counsel did not file the mandatory proposed order on Civil Form MC-053 with all hearing dates currently scheduled in this matter. Accordingly moving counsel is ordered to file the appropriate order within five (5) days of this ruling. The Court will delay the effective date of the order until proof of service of a copy of the signed order on Plaintiff has been filed with the Court.

The clerk shall provide notice of this ruling to the parties forthwith. Counsel to submit formal Orders in conformity with this Ruling within five (5) days.

10:00 a.m. Calendar